

Satish Shukla v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 May 2022 · Writ-C No. 6111 of 2022 · Writ-C No. 6111 of 2022 · **Writ disposed; Para 6.8 objection with stay of coercive recovery.**

HEADNOTE

On a challenge to a distribution licensee's recovery notice, the Allahabad High Court, without examining merits, disposed of the writ by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive recovery for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Satish Shukla challenged a 23 November 2021 recovery notice issued by the power distribution corporation, seeking certiorari to quash it, mandamus to decide his 10 December 2021 reply and to grant a domestic electricity connection at his house, and an interim direction keeping the notice in abeyance. Counsel for the corporation stated on instructions that the petitioner could file an objection against the demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

statutory objection to recovery notice

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if so submitted, the licensee shall decide it in accordance with law within the next four weeks after affording reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the recovery notice was disposed without merits by relegating the consumer to a Para 6.8 objection before the licensee. ¶ 1

para-6.8-objection-alternate-remedy Liberty was granted to file a Para 6.8 objection within four weeks, to be decided in accordance with law after hearing. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the 6.8 objection is filed in time, the licensee must decide it within four weeks after hearing; coercive recovery is stayed for eight weeks or until that disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 23.11.2021

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1

NOT DECIDED — ENTITLEMENT TO A DOMESTIC ELECTRICITY CONNECTION

Mandamus for a domestic connection was prayed but not granted; only the Para 6.8 objection path on the demand was opened. ¶ 1

